

9:00 Z	25CV476451	<i>Darnell Johnson</i> <i>v.</i> <i>Narinder Bains, et al.</i>	Order on Plaintiff's Motion for Immediate, Sheriff-Supervised Access to the Residence On November 6, 2025, Plaintiff Darnell Johnson moved <i>ex parte</i> for an Order providing him with immediate, sheriff-supervised access to his residence and belongings that he claims he has been deprived of. Defendant Gary W. Sullivan opposed the <i>ex parte</i> request and Judge Parrett denied the <i>ex parte</i> on November 10, 2025. On February 9, 2026, Plaintiff filed a new noticed motion seeking the same relief as his <i>ex parte</i> motion. That motion is set for September 16, 2026 at 9:00 a.m. in Department 16. The court finds this motion is not properly before the court today and vacates today's hearing. SO ORDERED.
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Line 1

Case Name: *Dottie Melman v. Harman Management Corporation, et al.*

Case No.: 23CV418396

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Gunter 183, Inc. ("Defendant") moves the Court for an Order Compelling Plaintiff's Independent Medical Examination of the Lumbar Spine. Notice of Motion (the "Motion") at 1:22-24 (filed: Jan. 20, 2026).

The Motion came on for hearing on June 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Before the Court is Defendant Gunter 183, Inc.’s (“Defendant”) motion for an order compelling Plaintiff Dottie Melman (“Plaintiff”) to submit to a second independent medical evaluation. Pursuant to California Rules of Court, rule 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND

This is a personal-injury action arising from Plaintiff’s alleged slip and fall at a fast-food restaurant located at 2200 Patterson Road, Riverbank, California. Plaintiff alleges she slipped on accumulated liquid on the floor and suffered bodily injuries.

Defendant previously obtained an independent medical evaluation of Plaintiff on June 17, 2024. After that evaluation, Plaintiff underwent lumbar spine surgery. Defendant now seeks a second independent medical evaluation based on Plaintiff’s later discovery responses, which identify continuing or worsening complaints involving the lumbar spine, lower-extremity numbness and tingling, neuropathy, mobility restrictions, hip complaints, and an anticipated left-hand condition.

II. DEFENDANT’S MOTION FOR A SECOND INDEPENDENT MEDICAL EVALUATION

A. Legal Standard

In a personal-injury action, a defendant may demand one physical examination of the plaintiff, subject to the statutory requirements governing the time, place, manner, conditions, scope, and nature of the examination. (Code Civ. Proc., § 2032.220, subds. (a), (c).)

A party seeking a further physical examination must obtain leave of court by motion and must show good cause. (Code Civ. Proc., §§ 2032.310, subd. (a), 2032.320, subd. (a).) Good cause requires specific facts justifying the discovery and a showing that the inquiry is relevant to the subject matter of the action. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840.)

The examination must be limited to the physical condition actually placed in controversy. (Code Civ. Proc., § 2032.020, subd. (a).) In a personal-injury action, the examination must be directly related to the specific injury or condition that is the subject of the litigation. (*Roberts v. Superior Court* (1973) 9 Cal.3d 330, 337.)

An order granting a physical examination must specify the person who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination. (Code Civ. Proc., § 2032.320, subd. (d).)

B. Discussion

1. Good Cause Exists for a Second Independent Medical Evaluation

Defendant has shown good cause for a second independent medical evaluation. Plaintiff's physical condition is directly in controversy because she seeks recovery for personal injuries arising from the alleged fall. (Compl., ¶¶ 16–18; Code Civ. Proc., §§ 2032.020, subd. (a), 2032.220, subd. (a).)

Although Defendant previously obtained an independent medical evaluation on June 17, 2024, that evaluation occurred before Plaintiff's July 2024 lumbar spine surgery. (Def.'s Mem., pp. 2–3 & Exs. 2–3.) Plaintiff's later discovery responses identify post-surgical low-back complaints, lower-extremity numbness and tingling, including symptoms in the left leg and feet, lower-extremity neuropathy, mobility restrictions, hip complaints, and an anticipated left-hand condition. (Stevens Decl., ¶ 2; Def.'s Separate Statement, pp. 2–5.)

These facts are sufficient to establish good cause for a further physical examination, i.e., the requested second independent medical evaluation, directed to Plaintiff's claimed post-evaluation and post-surgical conditions. (Code Civ. Proc., §§ 2032.310, 2032.320; *Vinson*, supra, 43 Cal.3d at p. 840.) The requested evaluation is relevant to Plaintiff's claimed injuries, causation,

the nature and extent of Plaintiff's alleged damages, and Defendant's ability to evaluate and respond to Plaintiff's claimed worsening or newly identified conditions.

2. Scope of the Evaluation

The Court must ensure that the examination remains tied to the conditions Plaintiff placed in controversy. (Code Civ. Proc., § 2032.020, subd. (a); *Roberts*, supra, 9 Cal.3d at p. 337.) The record supports an examination concerning Plaintiff's lumbar spine, post-surgical lumbar condition, lower-extremity neurological symptoms, gait and mobility limitations, hip complaints, and claimed left-hand condition. The record does not show that Plaintiff has placed a cervical-spine injury in controversy. Accordingly, the examination shall not include cervical-spine range-of-motion testing, Hoffman's testing, or a generalized upper-extremity neurological workup, except to the limited extent necessary to evaluate Plaintiff's claimed left-hand condition.

Defendant identifies the examiner as Luke Macyzyn, M.D. ("Dr. Macyzyn"), a neurological surgeon of the spine, and identifies the proposed date, time, place, expected duration, and examination procedures. (Notice of Mot., pp. 2–3; Stevens Decl., ¶ 4.) The examination shall be limited to Plaintiff's claimed lumbar spine condition, post-surgical lumbar condition, lower-extremity radiculopathy or neuropathy, lower-extremity numbness and tingling, gait and mobility limitations, hip complaints to the extent still claimed, and the claimed left-hand condition allegedly resulting from compensating for right-arm limitations.

The permitted procedures shall include visual inspection, palpation, lumbar range-of-motion testing, lower-extremity motor-strength testing, lower-extremity sensory testing, lower-extremity deep-tendon-reflex testing, clonus testing, gait testing, and related physical or neurological examination procedures reasonably necessary to evaluate the lumbar spine and lower-extremity conditions identified above.

As to the claimed left-hand condition, the examination may include visual inspection,

palpation, hand and wrist range-of-motion testing, grip-strength testing, sensory testing, motor-strength testing, and ligament or functional testing reasonably necessary to evaluate Plaintiff's claimed left-hand injury. Any upper-extremity testing shall be limited to the left hand, wrist, and related function, and shall not include a generalized upper-extremity neurological examination unrelated to the claimed left-hand condition.

Dr. Macyzyn may review, interpret, and correlate Plaintiff's symptoms and examination findings with Plaintiff's existing diagnostic studies and medical records, including existing x-rays, MRIs, and surgical records concerning the lumbar spine and claimed left-hand condition.

No cervical-spine range-of-motion testing, Hoffman's testing, generalized upper-extremity neurological testing, new x-rays, MRIs, EMG/nerve-conduction studies, blood tests, injections, or other diagnostic procedures shall be performed. The examination shall not include any painful, protracted, intrusive, or invasive testing, and shall not include a mental examination. The evaluation shall last approximately 30 to 45 minutes.

3. Location and Travel Expenses

The evaluation is scheduled to occur in Encino, California. Plaintiff is alleged to reside in Ceres, California. (Compl., ¶ 1.) The Court finds good cause for the travel involved based on the specialized spine-neurosurgical nature of the proposed examination, Plaintiff's claimed post-surgical lumbar condition and neurological complaints, Dr. Macyzyn's identified qualifications, and Defendant's agreement to pay reasonable travel expenses between Plaintiff's residence area and Encino, including any reasonably necessary overnight stay and meals. (Code Civ. Proc., § 2032.320, subd. (e).)

Defendant shall advance Plaintiff's reasonable travel expenses and costs for the examination, including reasonable transportation expenses between Plaintiff's residence area and Encino, and reasonable lodging and meals if an overnight stay is reasonably necessary.

As Defendant has shown good cause for a second independent medical evaluation directed to Plaintiff's claimed post-evaluation and post-surgical conditions, Defendant's motion is GRANTED, subject to the scope and conditions set forth above.

SO ORDERED.

Date: June 26, 2026

Hon. Lori E. Pegg
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Troy Parker v. County of Santa Clara, et al.*

Case No.: 23CV423796

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant County of Santa Clara ("County") moves for Summary Judgment or, in the alternative, Summary Adjudication in favor of the County and against Plaintiff Troy Parker under Code of Civil Procedure Section 437c on the grounds that the action has no merit, there is no triable issue of material fact, and the County is entitled to judgment as a matter of law. Notice of Motion (the "Motion") at 1:22-28 (filed: Oct. 22, 2025).

The Motion came on for hearing on June 26, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Pursuant to Code. Civ. Proc. § 437c, Defendant, County of Santa Clara ("County") moves for summary judgment or, in the alternative, summary adjudication against Plaintiff's first amended complaint ("FAC") on the following grounds: